

23NWCV02778 23NWCV02778

County: los-angeles

Division: Civil Law and Motion

Department: R

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#19

FERNANDEZ v. SUPER
CENTER CONCEPTS, INC.

CASE
NO.: 23NWCV02778

HEARING:
Tuesday, July 21, 2026, at 9:30 AM

Plaintiff
FRANCISCO VILLA FERNANDEZ's Motion for Sanctions is DENIED.

Moving party to give notice.

Background

On August 28, 2023,
Plaintiff FRANCISCO VILLA FERNANDEZ ("Plaintiff") filed this Negligence action
against Defendants SUPER CENTER CONCEPTS, INC. ("Defendant") and DOES 1 through
100.

Plaintiff's Complaint alleges the following causes
of action:

(1) Negligence and

(2) Premises Liability

On July 2, 2025, Plaintiff propounded discovery onto Defendant. On January 6, 2026, the Court granted Plaintiff's Motions to Compel Further Responses to Form and Special Interrogatories; Requests for Admissions; and Requests for Production. Defendant failed to comply with this Court's order.

Legal Standard

The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone because of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP 2023.030(a).)

"A party moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party's ability to establish an essential element of his claim or defense." (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1227.) Once such a showing is made, the burden shifts to the party seeking to avoid sanctions to disprove prejudice. (Id.) "Spoliation is the destruction or significant alteration of evidence, or the failure to preserve property for another's use as evidence in pending or reasonably foreseeable litigation. Destruction of evidence relevant to proof of an issue at trial can support an inference that the evidence would have been unfavorable to the party responsible for its destruction." (Reeves v. MV Transp., Inc. (2010) 186 Cal.App.4th 666, 681.)

Dust Mop

The Court does find the destruction of

the dust mop hindered the Plaintiff's ability to establish an essential element of his claim or defense.

Plaintiff contends the dust mop is necessary to assess Defendant's inspection. Not so.

As Plaintiff points out, Defendant's Person Most Knowledgeable, testified that the mop is not intended for use in mopping up liquid (Medina Deposition at p. 34:3-5.) If Plaintiff proves there was a liquid on the floor prior to his fall, there is clear evidence the mop was inadequate to clean up any spill. If Defendant attempts to argue the dust mop was adequate to clean up liquids, Plaintiff can use Mr. Medina's deposition to impeach. Plaintiff has not demonstrated the dust mop would produce any further relevant evidence.

Floor

Second, it is the Court's understanding that Plaintiff contends he fell due to some sort of liquid on the ground. The Court does not find the condition of the floor, five years after the subject incident to be relevant. Indeed, Plaintiff has maintained there was run-off water or some sort of liquid on the floor. That is exactly what Plaintiff argued in his opposition to Defendant's motion for summary judgment.

It is unreasonable for Defendant to expect the general condition of the floor would be relevant Plaintiff's case. Moreover, Plaintiff waited until after discovery closed in this case to request a site inspection. The Court is unconvinced Defendant's original flooring is relevant to Plaintiff's case.

Additional Video Footage

Lastly, Mr. Medina testified that there was video footage of the incident from multiple cameras. (Median Deposition at p. 117:10-119:15.) However, Mr. Medina only sent one video that had the "best view" of the incident due to Defendant's policies and procedures. (McAleer Deposition ¶ 34.)

Defendants contend sanctions should be not imposed because this case is like New Albertsons, where the Court held, "[t]he circumstances here involve neither the failure to comply with a discovery obligation nor the destruction of particularly probative evidence." (New Albertsons, Inc. v.

Superior Court (2008) 168 Cal.App.4th 1403, 1434.) The instant case is distinguishable as video footage of the subject incident is probative. Defendant does not argue these additional videos do not depict Plaintiff's fall or the condition of Defendant's floor. Instead, Defendant merely argues Mr. Medina produced video with the "best view" of the incident.

However, given that Mr. Medina acted in accordance with Defendant's policy, the Court does not impose issue or evidentiary sanctions. Further, Plaintiff does not demonstrate Defense Counsel willfully suppressed or concealed evidence. Lastly, the Court does not believe sanctions to be appropriate. Indeed, such sanctions would only serve to punish, not to remedy any harm caused to Plaintiff.

Instead, the Court finds it is more appropriate to provide the jury with a CACI 204 instruction which holds: "You may consider whether one party intentionally concealed or destroyed evidence. If you decide that a party did so, you may decide that the evidence would have been unfavorable to that party."

Thus, Plaintiff's Motion is DENIED. The Court finds a CACI 204 instruction is the more appropriate remedy.